

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF DMITRIYEVA AND OTHERS v. RUSSIA

(Applications nos. 30607/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

30 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Dmitriyeva and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 March 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by the Memorial Human Rights Centre, a non-governmental organisation practicing in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as participants of public assemblies in Moscow. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events, and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

14. Some applicants raised additional complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings. In view of the above findings, the Court considers that there is no need to deal separately with these remaining complaints under Article 6 of the Convention.

15. The applicants in applications nos. 1767/20 and 7972/20 also raised complaints under Article 3 of the Convention. The Court considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assemblies and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings, and *declares* the remainder of applications nos. 1767/20 and 7972/20 inadmissible;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assemblies;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 30 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Date	Administrative charges	Penalty	Final domestic decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	30607/18 18/06/2018	**Polina Igorevna DMITRIYEVA** 2000	Opposition rally 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	18/12/2017	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.40 p.m. to 9.00 p.m. on 12/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/12/2017	4,000
2.	64940/19 18/12/2019	**Matvey Olegovich SAMOYLYUK** 1999	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	12/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.40 p.m. on 27/07/2019 to 7.30 p.m. On 29/07/2019; the applicant spent more than 3 hours in a police van; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/09/2019.	5,000
3.	65296/19 18/12/2019	**Stanislav Yevgenyevich YANKOVSKIY** 1988	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.10 p.m. to 11.00 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/08/2019.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Date	Administrative charges	Penalty	Final domestic decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
4.	1767/20 27/12/2019	**Pavel Mikhaylovich SMIRNOV** 1995	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 19.3 § 1 of CAO	administrative arrest of 15 days	12/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.00 p.m. on 03/08/2019 to 8.00 p.m. on 05/08/2019 the applicant remained in detention until the hearings on his administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/08/2019	5,000
5.	7767/20 29/01/2020	**Kirill Vladimirovich SHLEPNEV** 1994	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	30/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.25 p.m. to 8.30 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/08/2019.	4,000
6.	7880/20 28/01/2020	**Kirill Maksimovich KORINETS** 1998	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 10,000	16/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.40 p.m. on 27/07/2019 to 6.00 p.m. on 29/07/201; the applicant remained in detention until the hearings on his administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/08/2019.	5,000
7.	7893/20 29/01/2020	**Nikolay Andreyevich PETYAYEV** 1978	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 20,000	20/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.30 p.m. on 27/07/2019 to 1.50 p.m. on 29/07/2019 the applicant remained in detention even after the administrative record had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 20/08/2019.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Date	Administrative charges	Penalty	Final domestic decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
8.	7972/20 23/01/2020	**Ilya Vladimirovich KIM** 1993	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 10,000	14/11/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.00 p.m. on 27/07/2019 to 6.30 p.m. on 29/07/2019 the applicant remained in detention even after the administrative record had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/11/2019.	4,000
9.	8316/20 31/01/2020	**Aleksandr Vasilyevich MITRYAYKIN** 1989	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	14/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.00 p.m. on 27/07/2019 to 8.00 p.m. on 29/07/201; the applicant remained in detention even after the administrative record had been drawn up, until the hearings on his administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/10/2019.	5,000
10.	10153/20 13/02/2020	**Aleksey Nikolayevich BALASHOV** 1973	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	14/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.05 p.m. on 03/08/2019 to 2.10 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/10/2019.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Date	Administrative charges	Penalty	Final domestic decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
11.	17984/20 23/03/2020	**Vladimir Dmitriyevich ZINOVYEV** 1999	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	04/10/2020	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.30 p.m. on 27/07/2019 to 5.00 p.m. on 29/07/2019 the applicant remained in detention even after the administrative record had been drawn up, until the hearings on his administrative-offence case; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2020.	5,000
12.	17985/20 23/03/2020	**Aleksey Igorevich ZEMKOV** 1992	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	08/10/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence, detention from 2.30 p.m. to 3.40 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 08/10/2019.	3,500
13.	17997/20 23/03/2020	**Maksim Semenovich DOLINSKIY** 1993	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	20/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. to 9.40 p.m. on 27/07/2019 the applicant remained in detention; the applicant remained for more than three hours in the police van; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 20/09/2019.	4,000
14.	18003/20 23/03/2020	**Aleksandr Aleksandrovich MUSAFIROV** 1996	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	16/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.15 p.m. to 4.15 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/10/2019.	4,000

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15.	18004/20 23/03/2020	**Sergey Petrovich MOMOTYUK** 1989	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	20/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.10 p.m. to 7.00 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 20/09/2019.	4,000
16.	18011/20 23/03/2020	**Mikhail Vitalyevich KURGIN** 1983	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	10/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.50 p.m. to 11.00 p.m. on 27/07/2019 the applicant remained for more than 7 hours in a police van; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 10/10/2019.	4,000
17.	18086/20 11/03/2020	**Timofey Anatolyevich SHATROV** 1985	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	30/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.55 p.m. to 6.40 p.m. on 27/07/2019 while the administrative record was drawn up only on 30/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/09/2019.	4,000
18.	18102/20 11/03/2020	**Vladimir Sergeyevich BATASOV** 2000	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	12/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.20 p.m. to midnight on 27/07/2019; while the said protocol was drawn up only on 31/07/2019. Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/09/2019	4,000

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19.	31854/20 08/07/2020	**Nikita Sabokhidinovich IVANKOV** 1994	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	08/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 p.m. to 8.00 p.m. on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 08/10/2019.	4,000
20.	39067/20 14/08/2020	**Ivan Vyacheslavovich KASYANENKO** 1999	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	14/11/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. on 27/07/2019 to 03.30 a.m. on 28/07/2019; while the administrative record was drawn up only on 30/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/11/2019.	4,000

[1] Plus any tax that may be chargeable to the applicants.